

a case venued in Contra Costa County. The costs for counsel's 10 hour 900 mile road travel for an in-person deposition that he noticed should not be borne by Defendant, especially where a flight may have been less expensive for Plaintiff. The Court finds that the travel and administrative costs appear to be excessive, and also finds that the \$46,343.15 costs are, as a whole, avoidable had Plaintiff's counsel employed less expensive means for travel and for the production of documents. Moreover, fees normally incurred in preparing for depositions of an opposing party are not normally recoverable from the opposing party.

Ruling

Based on the foregoing, the Court **denies** Plaintiff's motion for sanctions. Each party to bear their own costs and fees for this motion and for the costs incurred in Plaintiff's deposition of Defendant Chris Petlock.

7. 9:00 AM CASE NUMBER: C24-01128
CASE NAME: ANTON GEYN VS. HERSH PATEL, MD
***HEARING ON MINOR'S COMPROMISE RE: OLGA GEYN**

FILED BY: GEYN, ANTON

TENTATIVE RULING:

Summary

Petitioner Anton Geyn's Petition for Approval of Compromise of Minor Olga Geyn's (DOB 10/15/2015) ("Minor") Claim filed on January 22, 2026, is **granted**, as set forth below. No appearance is required at the February 25, 2026 hearing.

Background

Petitioner Anton Geyn, parent and guardian *ad litem* for his daughter, Minor, filed the Petition through counsel Walkup Melodia, et al., to compromise the claim that Minor has against Hersh Patel M.D, John Muir Health and that occurred on or about February 1, 2023 in Walnut Creek, California. Minor's father, and Petitioner, Anton Geyn, alleges that a delayed diagnosis and treatment of his prostate cancer by over a year progressed to an incurable stage, which could have been cured had he been notified of elevated PSA test results by Dr. Patel and John Muir Health. The Defendants, Dr. Patel and John Muir, offered \$50,000 to compromise minor's claim. The deduction of \$17,335.24 pays for attorney's fees and costs incurred. The net settlement amount of \$32,664.46 will be placed into a single-payment deferred annuity account with Pacific Life Insurance Company for Minor as set forth in the Petition.

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor's Claim lodged with the Court on January 22, 2026. No appearances is required at the February 25, 2026 hearing.

8. 9:00 AM CASE NUMBER: C24-01216
CASE NAME: SAM CHELLAKAN VS. JOHN SATHRI

HEARING IN RE: APPLICATION FOR RIGHT TO ATTACH ORDER AND ORDER FOR ISSUANCE OF WRIT OF ATTACHMENT

FILED BY: CHELLAKAN, SAM

TENTATIVE RULING:

Before the Court is Plaintiff Sam Chellakan's Application for Issuance of Writ of Attachment and Right to Attach Order.

Plaintiff's application is **denied** as set forth below.

Factual Allegations

Relevant to this matter, Plaintiff asserts a cause of action for breach of contract related to a promissory note dated May 5, 2024. The Promissory Note was entered into between Plaintiff Sam Chellakan and Defendant John Sathri. (Chellakan Decl. Ex. C.) It notes that Mr. Sathri borrowed \$100,000 from Mr. Chellakan, at an interest rate of 12% "with total amount payable of (One Hundred Six Thousand Dollars on or before November 30, 2024." (*Ibid.*) The Note also specifies: "Collateral to this Loan Amount of \$100,000 (One Hundred Fifty Thousand (sic) US Dollars) will be the property located at 30-32 Century Oaks Ct., San Ramon, CA." (*Ibid.*)

By this application, Plaintiff seeks a writ of attachment in the amount of \$110,000 on two separate properties: (1) 30-32 Century Oaks, San Ramon, CA 94583 (the "Property"), and (2) 9815 Broadmoor Drive, San Ramon, CA 94583.

Defendant opposes the application, arguing that Plaintiff has failed to present sufficient evidence to meet his burden to show that a writ of attachment is appropriate in this matter. He also argues that Plaintiffs has failed to establish the probability of his claim.

Standard

"Under Code of Civil Procedure section 483.010, a prejudgment attachment may issue only if the claim sued upon is (1) a claim for money based upon a contract, express or implied; (2) of a fixed or readily ascertainable amount not less than \$500; (3) either unsecured or secured by personal property, not real property (including fixtures); and (4) commercial in nature." (*Goldstein v. Barak Construction* (2008) 164 Cal.App.4th 845, 852.)

In issuing a writ of attachment, the court must make the following findings:

- (1) The claim upon which the attachment is based is one upon which an attachment may be issued.
- (2) The plaintiff has established the probable validity of the claim upon which the attachment is based.
- (3) The attachment is not sought for purposes other than the recovery on the claim upon which the attachment is based.
- (4) The amount to be secured by the attachment is greater than zero.

(CCP § 484.090(a).)

Attachment is a harsh remedy because it causes the defendant to lose control of their property before the plaintiff's claim is adjudicated. (See *Martin v. Aboyan* (1983) 148 Cal.App.3d 826, 831.)

Because of this, the statutory requirements are strictly construed. (See *Kemp Bros. Construction, Inc. v. Titan Electric Corp.* (2007) 146 Cal.App.4th 1474, 1476.) The court will issue a right to attach order if the plaintiff's declarations establish the probable validity of the plaintiff's claim. (Code Civ. Proc. § 484.090(a)(2).) The Plaintiff has the burden of proving both that its claim is one upon which an attachment may be issued and the probable validity of such claim. (*Bank of America v. Salinas Nissan, Inc.* (1989) 207 Cal.App.3d 260, 271.)

A defendant who opposes a right to attach order must give notice of his objection, "accompanied by an affidavit supporting any factual issues raised and points and authorities supporting any legal issues raised." (Code Civ. Proc. § 484.060, subd. (a).) The defendant may make a claim of exemption with respect to his property in the opposition. (Code Civ. Proc. § 484.070.)

Analysis

As the party seeking attachment, Plaintiff has the burden of proving (1) that his claim is one upon which an attachment may be issued and (2) the probable validity of such claim. (*Bank of America v. Salinas Nissan, Inc.* (1989) 207 Cal.App.3d 260, 271.) Defendant contends Plaintiff has failed to meet this burden on several fronts. Defendant does not appear to dispute that the claim sued upon is based on an express contract and is for a fixed or readily ascertainable amount. Defendant does argue that the amount at issue is less than \$500 and also focuses on the third and fourth elements – the loan is not commercial and it is secured by real property.

Commercial Purpose

"A purpose of the attachment statutes is to confine attachments to commercial situations and to prohibit them in consumer transactions." (*Kadison, Pfaelzer, Woodard, Quinn & Rossi v. Wilson* (1987) 197 Cal.App.3d 1, 4 ("Kadison").) As stated by the statute: "If the action is against a defendant who is a natural person, an attachment may be issued only on a claim which arises out of the conduct by the defendant of a trade, business, or profession." (Code Civ. Proc. § 483.010(c).)

Plaintiff has the burden "to show, among other things, that the claim sued upon arose out of the conduct by this individual defendant of a trade, business or profession." (*Nakasone v. Randall* (1982) 129 Cal.App.3d 757, 762.) "Those terms [i.e. trade, business, or profession] 'may be found to encompass almost any activity engaged in for profit with 'frequency and continuity....'" (*Kadison*, supra, 197 Cal.App.3d at 4 quoting *Advance Transformer Co. v. Superior Court* (1974) 44 Cal.App.3d 127, 130.)

Initially, it is unclear what Plaintiff is asserting is Defendant's 'trade, business, or profession.' While Mr. Chellakan's declaration indicates that Defendant is "a pastor at the Indian Community Church of the Valley ("ICCOV")", he does not state that this is Defendant's trade, business or profession. Defendant could have another full-time job and only perform the functions of a pastor on weekends. Even if being a pastor is Defendant's 'trade, business or profession,' it is unclear how the purchase of the Property relates to being a pastor. Real estate investments are not generally a part of a pastor's duties.

Mr. Chellakan's declaration indicates that the purpose of the \$100,000 loan was "to cover taxes and insurance for" the 30-32 Century Oaks property. (¶ 6.) The Property was supposedly purchased by

Defendant to perform church services there. There is no evidence indicating what the Property is being used for, much less that it is being used for church services.

In Reply, Plaintiff notes that Defendant's declaration "reflects that he is subdividing the Property in anticipation of 'future sale.'" This appears to contradict any assertion that it was purchased to perform church services. The purchase of property to subdivide and later sell also does not appear to relate to the duties of a pastor.

The evidence appears to show a personal loan to a friend and church mentor to assist during a time of financial uncertainty. Even if performing church services was Defendant's profession, the loan does not appear to be related to that activity. Not only must "the individual against whom attachment is sought ... be engaged in a trade or business, but that the obligation underlying the action must arise directly out of the conduct of the trade or business." (*Great American Ins. Co. v. National Health Services, Inc.* (1976) 62 Cal.App.3d 785, 794.) Plaintiff has provided no admissible evidence establishing that Defendant obtained the loan from Plaintiff as part of his 'trade, business or profession.'

In Reply, Plaintiff argues that Defendant "offers no evidence supporting the assertion in the Opposition that 'the money was used for personal, family, or household purposes.'" The burden, however, is on Plaintiff to show the money was used for commercial purposes. (*Nakasone*, supra, 129 Cal.App.3d 762.) The Defendant does not need to prove otherwise.

Conclusion

Attachment is a harsh remedy because it causes the defendant to lose control of their property before the plaintiff's claim is adjudicated. (*Martin*, supra, 148 Cal.App.3d at 831.) Because of this, the statutory requirements are strictly construed. (*Kemp Bros. Construction, Inc.*, supra, 146 Cal.App.4th at 1476.) Plaintiff has the burden "to show, among other things, that the claim sued upon arose out of the conduct by this individual defendant of a trade, business or profession." (*Nakasone*, supra, 129 Cal.App.3d at 762.) Plaintiff must also show Not "that the obligation underlying the action [arose] directly out of the conduct of the trade or business." (*Great American Ins. Co.*, supra, 62 Cal.App.3d at 794.)

Plaintiff has failed to provide evidence that the loan relates to a commercial transaction. Accordingly, Plaintiff's application for a writ of attachment and right to attach order is **denied**.

9. 9:00 AM CASE NUMBER: C24-03299
CASE NAME: EXO ENERGY, INC. VS. COMPLETE SOLAR, INC.
*MOTION/PETITION TO COMPEL ARBITRATION
FILED BY: COMPLETE SOLAR, INC.

TENTATIVE RULING:

Defendant Complete Solar's Motion to Compel Arbitration, filed on October 24, 2026, is **granted**. Plaintiff Exo Energy filed a notice of non-opposition on February 10, 2026. The Court will execute the proposed order lodged by Defendant on October 24, 2026. This matter is stayed pending arbitration. No appearance is required at the hearing on February 25, 2026.